

WEEK 6 · (DIS)POSSESSION

CLASS 1

Are Children Property?

READING 1

Selections from “Who Owns the Child?” – Woodhouse

READING 2

“I Lost Faith in the System” – Summers

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Barricaded Siblings Turn to TikTok – Dreyfus

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“WHO OWNS THE CHILD?": MEYER AND PIERCE AND THE CHILD AS PROPERTY

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EXCERPTED COURSE EDITION

| 996 I. THE NATURE OF THE PROJECT

This is a revisionist history of two liberal icons, *Meyer v.*

Nebraska^{| 997} and *Pierce v. Society of Sisters*. In these cases, the Supreme Court of the *Lochner* era struck down state laws from Western and Midwestern states prohibiting the teaching of the elementary grades in foreign languages and requiring that all elementary students attend public school. We have long revered *Meyer* and *Pierce* as expressions of a liberal and libertarian spirit. Today they stand for the values of pluralism, family autonomy, and the right “to heed the music of different drummers.” A critical examination of the historical context, the events and personalities that shaped the cases, and the testimony of contemporaries, suggests this account is incomplete. I will argue that they were animated, as well, by another set of values—a conservative attachment to the patriarchal family, to a class-stratified society, and to a parent’s private property rights in his children and their

* Excerpted from Barbara Bennett Woodhouse, “*Who Owns the Child?*”: *Meyer and Pierce and the Child as Property*, 33 William and Mary Law Review 995 (1992). This course edition omits the original footnotes and reprints only the assigned pages (pp. 996–1001, 1036–1037, 1039–1050, 1064–1068, 1087–1091, 1112–1117, 1122 only). The printed page numbers of the original appear in the text as | 995 at the point where each page begins; cite to those numbers — e.g., (Woodhouse 1992, 995). Bracketed italic lines mark material omitted from the excerpt. Italic passages set off between rules are the instructor’s annotations, not the author’s words, and should not be cited as the article.

labor. Along with protecting religious liberty and intellectual freedom, Meyer and Pierce constitutionalized a narrow, tradition-bound vision of the child as essentially private property. This vision continues to distort our family law and national family policy, so that we fail as lawmakers to respect children and fail as a nation to recognize and legitimate all American children as our own.

In Meyer, closely followed by Pierce, the Court first recognized parental rights of custody and control and added to the list of substantive due process economic liberties the right “to marry, establish a home, and bring up children.” We like to think of these as the good personal liberty gold of substantive due process left when the evil dross of economic due process was purged. They are the foundation cases for an entire constitutional theory of family. In spite of the fact that the several lines of precedent they generated cover the most controversial territory of our times, the Court seems to accept Meyer and Pierce themselves as pure and uncomplicated, virtual products of an immaculate |⁹⁹⁸ conception. Justice Brennan remarked of Meyer and its progeny, “I think I am safe in saying that no one doubts the wisdom or validity of those decisions. For once, no voices spoke in dissent.

To take Meyer and Pierce at face value is tempting, because the cases speak so eloquently for themselves. Consider the marvelous words that Justice McReynolds penned: “The child is not the mere creature of the State; those who nurture him and direct his destiny have the right, coupled with the high duty, to recognize and prepare him for additional obligations. Recall McReynolds’s stark picture of Plato’s Republic, in which children are expropriated at birth by the state and “no parent is to know his own child, nor any child his parent.” How can we disagree when he rejects these ideas as un-American?

[Two historiographical paragraphs (pp. 998–999) omitted.]

|⁹⁹⁹ As contemporaries realized, Meyer and Pierce were about children, parents, and the state, as well as about intellectual or religious freedom. Over and over, as this Article shows, ordinary people described Meyer and Pierce as posing the question, “Who Owns the Child?” In a time of ferment over private ownership and unregulated deployment of assets and of rapid changes in philosophies of government, childhood, and family, the answer was by no means simple. The questions latent in these cases are still with us. Who owns the child? What are the interests of the community in the child? If not a resource of the state, is the child a private asset of the parent? What, then, is

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the nature and origin | ¹⁰⁰⁰ of a parent’s title? If not property, is the child an extension of the parent? Or is it an individual with its own rights and its own voice? Are these substantive rights to a safe and nurturing childhood or merely negative liberties? Who speaks for the preverbal or the immature child? What happens when child and parent are at odds? What does it mean to privatize the family? And how does our individual investment in the private child affect our communal stake in the public child?

Swirling beneath the surface in Meyer and Pierce, these questions continue to plague family law, as it referees disputes over control of procreational and reproductive technology, stumbles towards a redefinition of parenthood, and is called to intervene in family break-up and family violence. These questions are at the heart of current family policy debates, as our schools resegregate by race and class, the gap between poor children of color and rich white children widens, and legislatures wrangle over children’s allowances, education policies, day care, and public health.

My project is storytelling. I do not pretend, at least in this Article, to present definitive answers to these questions. Nor is my objective, in proposing a revisionist account of Meyer and Pierce, to denigrate the important religious and intellectual liberty strands in the opinions or to negate their precedential value. I make no claim conclusively to prove the objective truth of my narrative, but I do claim to challenge the received wisdom with another plausible, richly detailed, and strongly contextual account.” By presenting a more panoramic, and perhaps, more skeptical, tale of the context in which the cases were decided, I hope to bring into view the dark side of Meyer and Pierce. Meyer | ¹⁰⁰¹ announced a dangerous form of liberty, the right to control another human being. Stamped on the reverse side of the coinage of family privacy and parental rights are the child’s voicelessness, objectification, and isolation from the community.

[Parts II–III (pp. 1002–1036) omitted.]

The omitted sections tell the story of the two laws behind these cases, and you need only its outline. Nebraska banned the teaching of foreign languages to elementary pupils; Robert Meyer, a Lutheran school-teacher, was fined for teaching a ten-year-old Bible stories in German. Oregon went further. In 1922, its voters required every child to attend public school — a law that would have abolished private and parochial schools entirely. A strange coalition passed it: the Ku Klux Klan sup-

plied the bigotry, while heirs of the Populist farm revolts supplied a leveling dream of rich and poor children educated “upon one common level.” The official ballot promised to “mix the children of the foreign-born with the native-born, and the rich with the poor” and “bring out the finished product—a true American.” Notice what the two sides shared. Parents claimed the child as theirs; the law’s champions answered that the child belonged first to the nation. The fight heading to the Supreme Court was not a fight between ownership and freedom. It was a fight between rival owners. Part IV picks up the question contemporaries asked over and over: who owns the child?

| 1036 IV. “WHO OWNS THE CHILD?”: COMPETING VISIONS OF CHILD, PARENT, AND STATE

God gave parents their children, government cannot rightfully take them away.

The child is first a national child. He belongs to the nation even before he belongs to himself.

Who owns the child? If the parent owns him—mind, body and soul—we must adopt one line of argument; if, as a free-will human being, he owns himself, we must adopt another.

As we have seen, the debate about the Nebraska and Oregon laws touched on longstanding differences over the proper relations between individual and community, between private property and public resources, and between classes in a democracy. These differences were mirrored in sharply divergent visions of relationships between child, parent, and state that competed for ascendancy during the period leading up to the Meyer and Pierce decisions. These contradictory models of family and society vied for supremacy not only of the hearth but of the courts and the ballot box. Meyer and Pierce, in the popular mind, posed a question that lay at the heart of these controversies: “Who owns the child?” Predictably, a conservative Supreme Court confirmed | 1037 the rights of the traditional owner, the parent. The Court’s elastic construction of Fourteenth Amendment liberty to include parental control of the child served—just as in the economic due process cases—to defend traditions of private ownership, hierarchical structures, and individualist values against claims of collective governance.

[The first half of Section IV.A (pp. 1037–1039) omitted.]

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The omitted pages rehearse the story family law tells about itself — a story of progress. Under the old patriarchal model, the father’s power over his household was absolute, and the law treated children “as assets of estates in which fathers had a vested right.” Over the nineteenth century, courts recast that ownership as trusteeship: parental authority became a duty conferred and regulated by the state, exercised in the child’s “best interests.” By 1900, the child was officially a person, not property. Below, Woodhouse answers that story, then spends Section B proving the answer. As you read, track the bundle of rights she names — use, transfer, exclusion — and ask which of them you have already seen exercised in this week’s case studies.

| 1039 This narrative, however valid as a fusionist account, fails to capture the overlapping images, turmoil, and inner contradictions of family culture and family law. ’ As with the profound altera | 1040 tions in economic and political life in America, the “domestic revolutions” described above encountered powerful resistance and obstinate counter-trends. Despite Locke, Lincoln, and Elizabeth Cady Stanton, the belief that women and children were figuratively owned by men did not suddenly disappear from people’s religions or their culture of family, nor was it purged from statutes and judicial opinions. Patriarchal ideals and structures that treated the child as property of the parent continued to exist side-by-side with Lockean theories of individual liberty, in which the child was essentially free, merely entrusted to the parent for nurture.

At the same time, a host of changes within society and the family, including abolition of slavery, women’s rights, women’s employment outside the home, the declining importance of inheritance, mass immigration, and public schooling, created countercurrents that affected the political as well as the domestic community. Drawing on their collectivist conception of family and community, women often spearheaded reform activism focusing on children and family life. As women entered political life, they tended to share the Populist and Progressive faith that the generations and classes, however divided, enjoyed a natural unity of interest. Evangelical feminists drew political and legal discourse away from individualism and towards an ethos of collectivity that stressed obligations to the social family rather than individual rights and interests. Central to this collectivist notion of family and community was child welfare.

By the 1890’s, children had captured the attention of social reformers. Child welfare grew into a recognized social science thought capa-

ble of directing and systematizing community stewardship of children. Child welfare efforts were, at first, channeled through private agencies¹⁰⁴¹ but soon spawned public bureaucracies on local, state, and federal levels. Active in child and maternal health, abuse and neglect, child labor, and juvenile correction, these bureaucrats and social workers have drawn fire from modern commentators for their intrusions on individual liberties. Indeed, these child welfare initiatives reflected values in sharp conflict with entrenched individualist traditions. Of all the elements of conflict present in turn-of-the-century family law, perhaps the one that best illustrates the tensions between conservative traditions and the novel and expansive visions of child, parent, and state is the stubborn tenacity of patriarchal property thinking.

B. A Legacy of Patriarchy: Parental Ownership of Children

When my mother died I was very young,
And my father sold me while yet my tongue,
Could scarcely cry weep weep weep weep.

We live in a time that no longer formalizes ownership of human beings and finds stories of parents selling children shockingly newsworthy. At the time of Meyer and Pierce, ownership of humans was a legal fact within living memory.¹⁰⁴² Ironically, the Court in Meyer and Pierce chose to hang parental control of children on the branch of Fourteenth Amendment “liberty.” Courts before Meyer had generally been slow to extend Fourteenth Amendment protection to the parent’s rights over the child. Pierce himself observed that “it is a strange perversion of the word ‘liberty’ to apply it to a right to control the conduct of others.” Yet adopt, for a moment, the perspective that children are patriarchal property. Suddenly, the right of parental control in Meyer and Pierce-authored and joined by the Court’s most inflexible laissez-faire conservatives and grounded on economic substantive due process precedents-acquires a logical framework. Property and ownership were indeed a powerful subtext of parental rights rhetoric in the era of Pierce and Meyer.

A property model asserts not that children are property but that our culture makes assumptions about children deeply analogous to those it adopts in thinking about property. In positing a property model of parenthood, I do not claim that it represents the whole of a parent’s relationship to his or her child but rather that it is useful in clarifying the historic responses of parents and judges to legislative

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and court interventions in the family. Nor do I quarrel with those who, like philosopher Colin Wringer, consign the claim that modern children are property “to the language of rhetoric” rather than that of fact.¹ I quarrel only with the latent assumption that rhetoric is unimportant. In my view, this property rhetoric sheds important light not only on Meyer and Pierce, but on the many ways in which courts and authorities act inconsistently with a trusteeship or best interest theory of adult power over children. If we look at history and ^{| 1043} listen to legislators, judges, and parents speaking about parental rights, clearly children were, and are, often conceptualized as closely akin to property.

The notion of the child as property is at least as ancient as the Greek and Judeo Christian traditions identifying man as the procreative force. Consider scripture: God created Eve from Adam’s rib, blessed Abraham’s seed, and required male circumcision as a primary symbol of the covenant. The patriarchs, and not the matriarchs, begat sons who themselves begat sons. The Greek philosophers also accentuated male procreativity as proof of the natural correctness of male dominance over women, slaves, and children. Aristotle believed the child was a parent’s possession because it came physically from the parent, like a tooth or a lock of hair. In Aristotle’s cosmology, it was the male seed, more divine than the base matter contributed by the female, that gave the child its life.² “The essential concept [in a patrilineal society] is the ‘seed,’ the part of men that grows into the children of their likeness within the bodies of women.” In order to increase their dynastic wealth, men appropriated “as property, the product of the reproductive capacity of subordinate women-children, to be worked, traded, married off, or sold as slaves, as the case might be.”

^{| 1044} Roman law treated children as chattels. The Roman Paterfamilias could not only sell his children at will, but also kill them. Women and children, in fact, may have represented the first accumulation of private property.² Patriarchal theories of state and theories of domestic government were mutually reinforcing. Men, it was said, ruled over their families like sovereigns over their subjects-or kings like fathers over their families.

Paternal property rights grew naturally from a patriarchal account of procreation-fathers gave children material being through their seed. The familiar statement that a child is flesh of the parent’s flesh² is a case in point. This oneness with the parent has powerful implications for the role of law. As Aristotle explained:

There cannot be injustice in an unqualified sense towards that which is one's own; and a chattel, or a child until it is of a certain age and has attained independence, is as it were a part of oneself; and nobody chooses to injure himself (hence there can be no injustice toward oneself); and so neither can there be any conduct towards them that is politically just or unjust.

Beneath its archaic logic, this statement corresponds to a common justification offered by parents who physically or sexually abuse their children-the child is mine and it is nobody's business what I do with it. That we tacitly accept this proposition as true |¹⁰⁴⁵ goes far toward explaining society's reluctance to intervene in the family.

But what does it mean to say a thing is "property"? Above all, to call something property is to conjure the paradigmatic American right. Property ownership is often described as a bundle of rights, including the right to use, the right to transfer, and the right to exclude, as well as rights of transmissibility and security. In practice, all of these rights were functional features of paternal power with respect to the child in Colonial and even nineteenth-century America. The father was entitled to use the child as a productive asset to herd, spin, farm, or care for younger siblings. The other face of use is abuse, and, under the "rule |¹⁰⁴⁶ of thumb," patriarchs had a right to enforce control over their households by beatings administered with a stick no thicker than a man's thumb. Into the mid-1880's, the law gave parents the right to transfer children by formalized instruments of indenture or apprenticeship, giving up their rights to use the child as labor in exchange for the master's assuming the duty to provide food, clothing, and vocational education. The parent could exclude others-both in the contemporary sense of exercising sole custody and control and in other ways, such as by refusing permission to marry or seeking damages for a daughter's seduction.² A further attribute of ownership is power of transmissibility-the right to devise or bequeath-which was reflected, well into the nineteenth century, in the father's testamentary power to appoint a guardian, often someone other than the child's mother. A final element of property ownership is the right to security or immunity from expropriation -the right that Oregon parents invoked when they accused government of Bolshevism in taking their children, and the most jealously guarded right under modern constitutional law. Even the restraints on transfer that grew up around parental rights reflected the conviction that such rights were "absolute, proprietary, and God-given, and consequently unalterable by man."

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| ¹⁰⁴⁷ Although, as we have seen, new political developments and social theories loosened the grip of patriarchy on America, women’s emancipation from husbands, and even their enfranchisement, did not alter male dominance in public life. Nor did it alter the market-based and property-oriented framework in which the family operated. As Grossberg observed, when patriarchs lost power, or shared power with their wives, the role of guardian and mediator was handed over to a judiciary that tended to perpetuate patriarchal models of family governance. Judges acted “to promote and protect the republican family and its constellation of economic, social, cultural, and class interests.

Children, if not parental property in themselves, were important conduits and conservers of parental property. Even after the demise of patriarchy as the official legal benchmark in custody disputes, judges often defined the child’s “best interests” in terms of money and class. The rationale was that wealth and social status “depended upon the happy maintenance of the paternal tie [and] the preservation of the patriarchal power,” because it was the father who “bestowed education, advancement, and inheritance” upon the child.

| ¹⁰⁴⁸ Significantly, even as courts grew more gender-neutral, they still gave primacy to parents’ natural rights of possession. The child’s “best interests” served as a tie-breaker in disputes between parents but fell by the wayside in disputes between parents and a “stranger”—an odd word to use for a person, often a relative, who had raised the child from infancy. Courts ruled that the child must be returned to the natural parent on demand, absent a showing of the parent’s delinquency or of severe danger to the child. In the words of one court, “the voice of nature, which declares that the father is the natural guardian of his minor child, cannot be silenced.

Thus, in some ways, only the locus and distribution of power over children shifted. Judges and litigants still often reasoned in the language of ownership and possession.^P Many of the judicial opinions historians cite to illustrate the march of family history betray the persistence of property images. In the judges’ words, children “belong” either to parents or to the state; courts treat custody cases as if “setting up conflicting claims to a property in the child; 0 and fathers have “the better title to the custody | ¹⁰⁴⁹ of their minor children.” In these opinions, children pass from owner to owner in the formal language of property: a father “gave, assigned, and transferred” a nine day old infant; a “mother was not vested with the testamentary disposition of the child;” and another mother acted outside her authority when she “gave and bequeathed” her children to relatives. The remedies, too, speak in

property terms: one may “bring suit for recovery of the child where it has come into the possession of a third person,”⁵ and “there is no doctrine of right by adverse possession in the custody of children.”

A look at a pair of articles appearing in 1919 and 1920 in a popular magazine illustrates how the old property and patriarchy models still support the facade of “modern” family law. Mary Sumner Boyd, in an article entitled *Is Your Child Yours?*, related that “in more than half the states in the Union . . . [f]ull ownership lies with the father.”⁶ Dean Joseph R. Long of the School of Law of Washington and Lee University responded to the inflammatory piece in a subsequent issue, assuring the readers of the *Ladies’ Home Journal* that

[F]ew more pointless questions could be addressed to an American mother [Her children] are hers just so far as she |¹⁰⁵⁰ binds them to herself by the exercise of her own powers of affection and character . . . by a tie which neither time, nor space, nor even death itself can ever wholly sever.

Nevertheless, Long stressed that “[m]ost of the legal rights and duties of members of a family are based upon the general principle that in law the husband and father is the head of the family. This is a principle of the highest importance.” Parental rights, he explained, flow from duties, and the duties happen to fall primarily on fathers not mothers. Although the courts’ mandate in deciding custody cases is to protect the welfare of the child, Long hastened to note that “[t]he natural rights of the parent are not ignored, and as an abstract rule of law the father, and not the mother, has a legal right to the custody of the child,” as well as the right to the child’s wages and to name a testamentary guardian. Displaying his modernity, Dean Long protested that “children are not chattels, but he illustrated his point with a case that treated a young boy precisely as a chattel, to be transferred and reclaimed at the parents’ will, in disregard of his own wishes and welfare.

[Part V on children’s rights, and the first half of its child labor section (pp. 1050–1064), omitted.]

The omitted pages introduce the forces arrayed against patriarchy. Reformers were inventing a language of children’s rights — articulated, as ever, by adults — and proclaimed the twentieth century “the Century of the Child.” Their most direct assault on parental ownership was the campaign against child labor, and the Supreme Court blocked it twice,

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striking down federal child labor laws in 1918 (Hammer v. Dagenhart) and again in 1922. That left reformers one route: a constitutional amendment letting Congress regulate the labor of anyone under eighteen. The fight over the Child Labor Amendment is where Americans said the property part out loud, and it is where Woodhouse picks up below. Notice who speaks the ownership claims — fathers, senators, employers — and watch the final paragraph, where for the first time three claimants to the child stand in the same sentence.

| 1064 Children’s labor in early twentieth-century America was still, quite literally, parental property. Under the “family labor system,” the employer would contract with the head of a family to pay to him a given sum in exchange for the labor of all or some family members. Children who received pay envelopes were expected to turn them over to the parent unopened. As oral histories reveal, young workers sometimes balked. One boy of nineteen decided to leave the mill, live on his own, and work on the railroad. He recalled how his father canceled that plan, saying “‘You’re too young, you belong to me.’ I said, ‘Yes that’s right, but I can make my own money, Daddy.’ He said, ‘Well you ain’t going to make none, because I’ll forbid them paying you if you go.’ So that knocked that in the head.” Walter Pierce, the future governor of Oregon, was treated more liberally when, at seventeen, he wanted to leave farming for school mastering. He was allowed | 1065 to take up his new career but was expected to hire an Irish boy to work as his substitute until he turned twenty-one.³

Given this legacy, it is not surprising that public debates on child labor analogized the family to a kingdom and parental rights to property rights. Proponents descended to the enemy’s turf and argued that even horses were protected by law from their owner’s abuse, and children should receive at least the protection given to a chattel. Detractors minimized the furor over parents’ abuse of their children, comparing it to the antebellum furor over the slaveholder’s abuse of his human property. In a letter to Congress, one former senator suggested that the evil of child labor, like the evil of slavery, was exaggerated because “men do not in general treat their property” with brutality.

Echoing arguments raised against the school laws, opponents of child labor regulation predicted that it would undermine parental authority and ultimately result in the downfall of the Republic, if not a revolution. The Child Labor Amendment, critics said, “would dethrone parents and subvert family government.” President Butler of Columbia University added that “[n]o American mother would favor the adoption

of an amendment that would empower Congress to invade the rights of parents and to shape family life to its liking.” It is doubtful, however, that America’s mothers were those who felt most threatened by the Amendment. One Nevada assemblyman spoke for multitudes when he complained, “They have taken our women away from us by constitutional amendments; they have taken our liquor away from us; and now they want to take our children.”

| 1066 If children were a form of property, the Amendment’s critics were firmly committed to private ownership. Like universal common schooling, the Child Labor Amendment was condemned as 66a communistic effort to nationalize children.” Commenting on the Amendment, Senator Ransdell of Louisiana said:

Parents will remain in the background after being permitted to bring children into the world and nurture them during their tender years of toddling infancy. Just as soon as the children are large enough to be of some assistance to their real parents they must be delivered to their statutory father in Washington.

[A paragraph on the Amendment’s defeat in the New York legislature (pp. 1066–1067) omitted.]

| 1067 In 1918, Justice Holmes wrote in his *Hammer v. Dagenhart* dissent, “[I]f there is any matter upon which civilized countries have agreed . . . it is the evil of premature and excessive child labor.” Holmes’s assessment was correct. The Court was out of step with the times, but it was not alone. The entrenched resistance to child labor legislation, evident in the votes of five Justices in *Hammer* and the travails of the Child Labor Amendment, did not spring from callousness so much as from fear of losing parental prerogatives to an all-consuming state. Alongside notions of children as individuals and national assets, Americans cherished deeply etched images of children as their God-given, inalienable property; treasures, to be sure, but private treasures under the control and custody of their parents. As Herbert Spencer, oracle of conservative doctrine, complained, “Not the parent but the nation is now in chief measure the owner of the child.” The Court, like many members of the public, reacted with ambivalence and concern when it saw these most | 1068 precious of vested interests threatened with expropriation.

The child, in the era of Meyer and Pierce, thus was gaining new and conflicting dimensions, both public and private. Although still viewed as belonging to their parents, children were reconceptualized both as

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public treasure, belonging to and having claims upon the larger community, and as free individuals, possessors of individual rights actualized through parents or judges. No wonder the opponents of the school laws and child labor laws framed the issue as “Who Owns the Child?”⁸ The answer was no longer obvious because the parent’s claim now competed with the community’s claim and the child’s own claim.

[Part VI’s profiles of the attorneys and Justices, and the oral argument (pp. 1068–1087), omitted.]

The omitted pages tell the courtroom story. William Dameron Guthrie — a corporate lawyer who had built the constitutional arguments against child labor laws — filed a brief teaching the Court to see the language laws through the specter of Plato’s Republic, where children are taken from their parents and raised by the state. Justice James C. McReynolds, by most accounts the most bigoted man ever to sit on the Court and no friend of German-Americans, nonetheless wrote the opinion striking down Nebraska’s law in June 1923. Justice Holmes, the Court’s famous liberal, dissented: he saw a routine regulation that a state was free to try. Two years later, Pierce struck down Oregon’s law unanimously. The passage below examines what the Meyer opinion actually stands on. Read for two things: where the parental right comes from — which precedents? — and who “the individual” protected by all this liberty turns out to be.

| 1087 2. McREYNOLDS’S OPINION

McReynolds’s opinion skims lightly over the broad range of possible grounds before the Court for striking down the language law. Powerful pluralism and religious and intellectual liberty arguments were made, yet McReynolds focused primarily on the statute’s interference with teachers’ property rights and the rights of parents to control the activities of their children.⁹ After repeating the Nebraska court’s findings on the necessity for restricting German language instruction, McReynolds framed the issue as whether the statute unreasonably infringed on liberty guaranteed by the Fourteenth Amendment.

McReynolds began his analysis with an enumeration, in dicta, of concepts included under the term “liberty,” adding to the list Justice Bradley began in his dissent in *The Slaughter-House Cases*,¹⁰ and Justice Beckham continued in *Allgeyer v. Louisiana*,¹¹ new rights “to acquire useful knowledge, to marry, establish a home and bring up

children.” For authority, |¹⁰⁸⁸ McReynolds cited a long line of precedents involving regulations burdening economic rights, challenged under either substantive due process or equal protection theories as deprivations of economic liberty or private property rights. None of the cited cases, however, provided any authority for a parental right to control the child, save by analogy to other models of private ownership.

McReynolds continued by noting that “corresponding to the right of control, it is the natural duty of the parent to give his children education suitable to their station in life.”⁰ The opinion held that because mere knowledge of German was not harmful, the teacher’s right to pursue his occupation and the parents’ right to engage him in the instruction of their children were within the liberty of the Amendment. Noting that the statutory ban at issue applied to all modern languages other than English, McReynolds concluded that it was an interference with “the calling of modern language teachers, with the opportunities of |¹⁰⁸⁹ pupils to acquire knowledge, and with the power of parents to control the education of their own.”[’] The dramatic focal point of the opinion, however, is the specter of communal ownership of wives and children in the Ideal Commonwealth of Plato and in the Spartan City-State.[’] This image, most likely inspired by the Guthrie amicus brief, seems a far more appropriate response to the prospect of forcing all children into universal common schools than to the relatively limited requirement that private schools teach in English. McReynolds wrote: For the welfare of his Ideal Commonwealth, Plato suggested a law which should provide: “That the wives of our guardians are to be common, and their children are to be common, and no parent is to know his own child, nor any child his parent The proper officers will take the offspring of the good parents to the pen or fold, and there they will deposit them with certain nurses who dwell in a separate quarter; but the offspring of the inferior, or of the better when they chance to be deformed, will be put away in some mysterious, unknown place, as they should be.” In order to submerge the individual and develop ideal citizens, Sparta assembled the males at seven into barracks and entrusted their subsequent education and training to official guardians. Both Plato’s Commonwealth and Sparta advocated taking the child from its parents and placing it in the hands of the state. |¹⁰⁹⁰ In what may be taken as a reference to Plato (and, with some irony, to the Marxist theorists), McReynolds noted that “[a]lthough such measures have been deliberately approved by men of great genius, their ideas touching the relation between individual and State were wholly different from those upon which our institutions rest.”

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The modern reader easily assumes that the “individual” to whom McReynolds referred is the child. This is one plausible reading. It is important to understand, however, that many of McReynolds’s contemporaries, more accustomed to thinking of children as belonging to parents than as individuals having a direct relationship with government, interpreted the individual whose rights McReynolds meant to vindicate as the parent. They read the analogy to Plato as an oblique reference to nationalization of children, as of every form of private asset, under communism. They viewed the decisions in Meyer and Pierce as, above all, championing the individual’s right to control his own free from government interference. McReynolds’s defense of the privatized family and flat rejection of public control of childrearing as “wholly different” from American institutions were all the more ardent and categorical, because they denied present reality. By 1923, the family citadel was crumbling under assaults from common schooling, child welfare, juvenile justice, child labor laws, and a host of government assumptions of paternal prerogatives designed to standardize child-rearing and make it responsive to community values.

¹⁰⁹¹ McReynolds’s opinion largely neglected the religious liberty and intellectual freedom arguments developed at oral argument. The rights of children received passing mention in dicta. Over-all, McReynolds’s opinion may be seen as voicing, in a more sophisticated form, the question asked by the Oregon school law opposition pamphlets: “Who Owns Your Child? The answer is clear—the parent. The parent’s right to control the child was a fundamental right protected from state infringement by the Fourteenth Amendment. ? In reaching this conclusion, McReynolds ignored contrary precedents such as *Wadleigh v. Newhalses* and *Mercein v. People*. Instead, he threw the weight of the Court against the movement, inaugurated in the nineteenth century, toward conceptualizing the relation of child, parent, and state as a triangular arrangement instituted and regulated by the state for protection of the child. Much less did he concede the Progressive vision of the child as public resource and public ward, entitled both to make claims upon the community and to be claimed by the community. In McReynolds’s view, parental control of the child, like private ownership of property, was not a feature of social organization that might be tampered with in the name of reform. Like a man’s right to his own labor, his freedom to contract, and his right to the child’s labor—all protected properties and economic liberties under the Due Process Clause—the child itself began to resemble “an isolated human property, largely beyond the domain of social control.” 7

[Holmes's dissent, Pierce v. Society of Sisters, and the Epilogue (pp. 1092–1112) omitted.]

| 1112 IX. CONCLUSION

This revisionist history has asked the reader to take a fresh look at two old icons. Most people think of Meyer and Pierce as primarily about intellectual liberty and secondarily about family autonomy. I have suggested that they are also about property-property in children. I have exposed the links between assimilationist pluralism and the language laws, and the related tensions over what part of a child's cultural identity belongs to the parent and what part to the state. I have exposed the linkage between populism, progressivism, and the notions of class unity and egalitarianism evident in universal common schooling laws. The idea of all children attending public schools challenges parents' exclusive right to control their children's destinies and to use children to preserve and express parents' status and class. Finally, I have exposed the links between economic due process and family liberties. Both grow from a Spencerian conviction that men should be free to deploy their properties as they wish. That parental rights of control in Meyer and Pierce had a strong | 1113 property component is evident in their descent from Allgeyer," in their genesis as patriarchal rights of ownership, and in the rhetoric of property that greeted attempts to define children's rights and to mitigate parental control of children's labor. I have flipped the coin of family autonomy to show its underside, stamped with "liberty" but standing for the power to own another human being and to cast social regulation of this power as an assault on freedom.

Much of the old story of Meyer and Pierce remains valid. But although the historical context confirms that these school initiatives were tainted by prejudice and religious bias, my project has been to show that other tensions also played key roles. After almost three quarters of a century, these tensions remain a part of our present social, legal, and political story. To fully document this claim would call for a paper as long as this one. But I will briefly illustrate, under the rubrics of "Child as Property" and "Private Child vs. Public Child."

1992

“WHO OWNS THE CHILD?”

A. Child as Property

Among the bundle of rights that make up property are the right to exclusive possession and the right to use. Both of these aspects of parental control are alive today. By constitutionalizing a patriarchal notion of parental rights, Meyer and Pierce interrupted the trend of family law moving toward children’s rights and revitalized the notion of rights of possession. Earlier, I highlighted (as stubborn hold-outs) various cases from the turn of the century in which genetic parents’ rights, considered superior because they were grounded in laws of nature, were used to take possession of the child from a so-called stranger who had raised the child from infancy. In modern family courts, similar cases occur every day, under contemporary rules of law that are unfriendly to children’s interests in preserving relationships with ¹¹¹⁴ extended family members or guardians. Patriarchal notions of ownership do not lend themselves to a child-centered theory of custody or parenthood. The patriarchal tradition assumes that parents’ rights exist for the parent and not, as Reverend Savage would have it, for the child. Doctrines that focus on genetic parentage to the exclusion of those who care for the child disserve children as a class. The incentives they create are skewed to overvalue procreation and undervalue nurture, at a time when nurture is in very short supply. They also disserve the individual child by treating her as a movable chattel rather than a person who has put down her own roots and formed her own attachments. These rules are one exhibit for my claim that the property theory latent in Meyer and Pierce adversely affects the way the law views children.

I have also claimed that our legal system fails to respect children. Children are often used as instruments, as in Meyer and Pierce. The child is denied her own voice and identity and becomes a conduit for the parents’ religious expression, cultural identity, and class aspirations. The parents’ authority to speak for and through the child is explicit in Meyer’s “right of control” and Pierce’s “high duty” of the parent to direct his child’s destiny. Later cases, like *Wisconsin v. Yoder* seem to ratify this ¹¹¹⁵ instrumentalism. The minor child is a key tool of the parents’ free exercise but has no independent free exercise protections. Even when Meyer and Pierce lead to the vindication of First Amendment liberties, it is thus the parent’s voice and choice that we hear and not the child’s. Obviously, good reasons exist for presuming that the parent speaks for the child. I am sure that Brandeis and McReynolds would both agree that, ordinarily, the best guardian

of the child's intellectual liberty and welfare is the parent. But constitutionalizing this presumption as the parents' "right" to speak, choose, and live through the child has led to its being too often invoked in situations in which it is, at best, unnecessary or, at worst, oppressive. 1

This is not an easy area. Recent bitterly disputed Supreme Court cases on children as witnesses have tested the Constitu-^{| 1116}tion's capacity to integrate children's voice into an adult legal system. The Court has also quarrelled over presumptions, such as the presumption that abused children's interests in reunification of the family are coextensive with their parents'. The Court has shown a disturbing willingness to deny the child's reality in order to protect a hollow family integrity. 8 These disputes over acknowledging children's independent voices and independent ^{| 1117} interests indicate the tenacity of the Arisotelian idea, establishing the impossibility of intrafamily oppression, that parent and child are one, and "there can be no injustice to oneself.

[Conclusion Section B (pp. 1117–1122) omitted.]

^{| 1122} We have come full circle. Who owns the child? Morally, I believe children own themselves. Neither the state nor the parent owns them, although each must genuinely love them and take responsibility for their future. Legally and politically? See the next page of your Law Week, your Ladies' Home Journal, or your New York Times. Story to be continued.

THE BUREAU OF INVESTIGATIVE JOURNALISM

13.04.26 JUSTICE · FAMILY COURT FILES

'I LOST FAITH IN THE SYSTEM': THE TEENAGER WHO TOOK ON THE FAMILY COURTS AND WON

Florence was taken from her mum aged 10. Then she embarked on a five-year battle to reverse court orders

By Hannah Summers

Published April 13, 2026



PHOTO: REGENWEIBCHEN PHOTOGRAPHY

Florence* was at home with her maths tutor on the day she was taken away from her mother. Without warning, a social worker came to the house and told her she had half an hour to pack her things. Florence burst into tears. She was just 10 years old.

“I stuffed my favourite outfit in a bag – this blue shirt and leggings – along with a photo of me and mum,” she recalls. “And then I got this bunny, my favourite soft toy, and I left it on her bed. It is what mum would do for me if she ever had to go away.”

Florence later learned this parting gesture had been used to criticise her mother, who had been her primary carer since her parents separated two years earlier. “The social worker said to my mum that no child should be worried about their parent’s feelings and it was a sign of abuse”, she told us.

After walking Florence to her father’s house, the social worker told her she would be able to go home in four or five weeks. Later she was told six months. In the end, it took her five years – and a remarkable high court battle – before she was able to return to live with her mother.

Every year, tens of thousands of children are caught in the middle of family court disputes as their parents fight over custody arrangements. For many, the process is fraught but short lived. For others like Florence, these bitter and protracted battles become all consuming, marked by countless hearings and serious allegations between their parents.

Childhoods become punctuated by successive meetings with professionals. Sometimes that support makes a difference. But what happens when trust breaks down and the system meant to protect a child becomes part of the problem?

This is where Florence found herself. Feeling trapped and with nowhere else to turn, she wrote a letter to the president of the family division, the most senior family court judge in England and Wales. “I was desperately seeking help trying to find my own lawyer,” says Florence. She received no response.

Dear President of family division, Mr McFarlane,
 Friday 9th November 2018
 I am writing to inform you that, when I asked for a solicitor and found [redacted], it was decided that I would not be allowed to have her as my solicitor. Instead, I was appointed [redacted], who is a junior, whereas [redacted] is a senior and has been a solicitor for 30 years, meaning that she is far more experienced. I would like to appeal the decision made in court because, when I was supposed to have been represented in court, [redacted] said that I was not competent in making a decision, which is not what she would have said if she was representing me properly. I have spoken to [redacted] and she has given me her permission to appeal. In the future, I would hope that she can be my solicitor. Thankyou for taking the time to read this letter. My email address is [redacted] and I am 12 years old.
 Kind regards,
 [redacted]

The letter Florence sent McFarlane in 2018

As Sir Andrew McFarlane retires today from his role as head of the family division, Florence – now 20 and in her second year at university – has written to him again. “In light of your imminent retirement, I thought it was critical to draw your attention to the detrimental impact private law proceedings have had on my life,” she writes.

This time she received a reply – although not the one she hoped for. It said McFarlane couldn’t comment on a case that he hadn’t presided over, nor on the systemic issues raised. His office did apologise for not previously responding.

“It’s hard to imagine, given his position, that he can’t comment more broadly on issues that affect young people,” says Florence. “Where else can we turn?”

‘I FELT POWERLESS’

Florence remembers some “really happy times” growing up. But her childhood memories later became marred by her father’s anger.

“If I had a tantrum he would get angry, but not in the way most parents get annoyed with their kids,” she says. “There were times when he would hold me too tight and hurt

my arm or he would hold the bedroom door closed so I couldn't get out. It would scare me."

FLORENCE'S LETTER IN FULL

Dear Rt Hon Sir Andrew McFarlane,

In light of your imminent retirement, I thought it was critical to draw your attention to the detrimental impact private law proceedings have had on my life. I was removed from my mother's care without notice, at the age of ten. The Family Court's failure to hear my voice and protect me from domestic abuse and coercive control was truly appalling.

Further, the impact of so-called 'parental alienation' in private law proceedings and subsequent reunification therapies caused me great harm and overshadowed my life. Despite findings of domestic abuse, I was disbelieved and told that my concerns were invalid, that I had been manipulated by my mother.

As an advocate for change, I know that children today continue to be placed at risk when domestic abuse is disclosed, and my experiences should never be repeated.

I am now in my second year of university. However, I spent years navigating the family justice system, this process only terminating last year. When I first wrote to you in 2018, I was twelve years old and desperately seeking your help. Instead, I was ignored and my letter was sent to the judge presiding over the case. This action had a negative impact because my voice continued to be silenced and professionals understood this to be a sign that even the President of the Family Court disbelieved thought that I was being manipulated by my mother.

As previously stated, at the age of ten I was removed from my mother's care. Within hours of a court order being made, a social worker arrived to take me. I was told that I would return home within 4-5 weeks, then 6 months, and then it became unclear if I would return. It took five years.

After I was removed, I spent the ensuing five years faced with professional after professional, who refused to believe me. I was told that I was repeating my mother's words and that, despite findings of domestic abuse, it was better to have a relationship with the person who frightened me.

I relentlessly tried to seek help, but the legal battle to live with my mother only terminated years later in the High Court after finding my own legal representation.

As a child, I quickly learnt that no professional services would help me. I was forced from social workers to expert witnesses, going between the police and helplines. I was sent to many people's managers, met with an apology for their lack of power, sometimes saying that 'your case will stay with me forever'. Nothing could change the decisions made by the Family Court, and going to court as a child, appealing the court as a child, was terrifying. The endless cycle felt like a cage I could not escape from and truly became one of the most impactful traumatic experiences.

Not only do I speak from my own experience, but with the knowledge of the devastating realities of so many other young people who also find themselves trapped, many without the opportunity to fight for themselves in court. Although I am grateful for the many positive aspects of my childhood, I vividly recall the intense feelings of loneliness which clouded the entirety of my youth. Being removed from my mother will have lifelong consequences for both of us.

My hope is that this letter will help you and others to reflect upon the changes which need to be made so that next time a young person reaches out for help in desperation, change occurs. I understand that this is not just down to you, it is a systematic change which needs to take place, so I urge you to encourage your successor to take this into account.

Thank you for taking the time to read this.

Best wishes,

Florence

At first it was a relief when her parents separated and her father moved out. "I thought, 'Thank goodness', because they had been constantly fighting. But then I realised I would have to spend time alone with dad."

Initially Florence saw her father on weekends. On one occasion she tried to run away and the police became involved. She told them he had confiscated her shoes and phone and restrained her, locking her in his house.

The animosity continued between her parents, who argued over how much time Florence should spend with each of them. And, eventually, the dispute landed in the family court.

In 2016, a district judge found her father had on one occasion slapped her mother, and on another held Florence down and shouted at her. The judge also found the mother

harboured a great deal of anger against Florence's father and did not want Florence to see him.

A consultant child psychiatrist, Dr Mark Berelowitz, was brought onto the case to assess the family. He said Florence spoke to him about "adult issues" – the implication being she was repeating things her mother had said. He said Florence was opposed to seeing her father because she had been subjected to her mother's "unresolved angry feelings about the breakdown of the relationship".

Adopting this narrative, the judge then concluded that the mother did not want her daughter spending time with her father and was not giving her emotional permission to enjoy a relationship with him. She ordered that Florence should move to live with her father.



PHOTOS
BY
REGENWEIBCHEN
PHOTOGRAPHY

This story illustrates how an expert introducing the concept of "parental alienation" – the idea one parent can turn a child against the other – can flip a family conflict on its head. Even though the father had findings of abuse against him, it was the mother who was blamed for the issues.

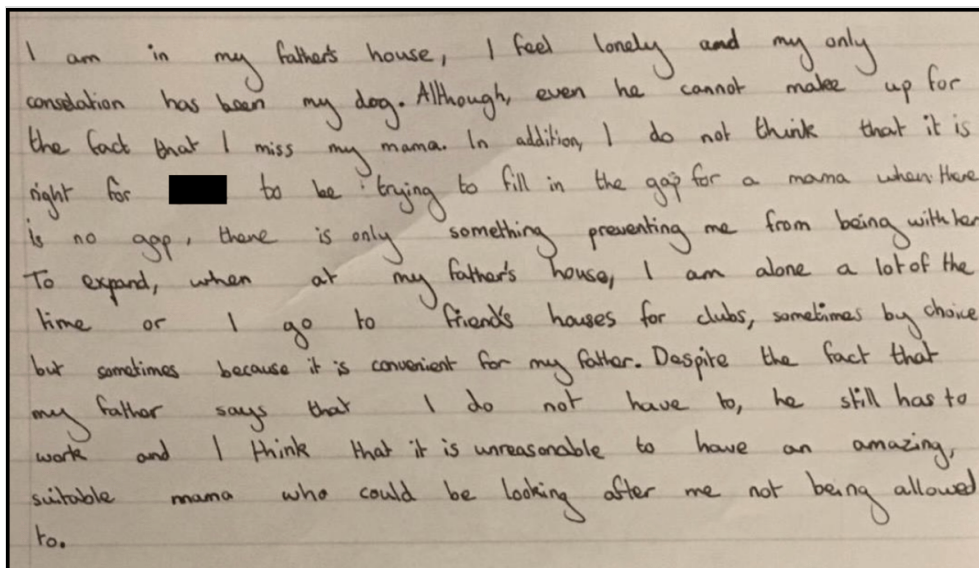
In her recent letter to McFarlane, Florence explains: "I was removed from my mother's care within hours of a court order being made... I spent the ensuing five years faced with professional after professional who refused to believe me. They said I was repeating my mother's words and that, despite findings of domestic abuse, it was better to have a relationship with the person who frightened me."

She said moving to live with her father against her wishes left her with a "heavy grieving feeling" that she was unable to put into words.

When approached about Florence, Berelowitz said it would be inappropriate for him to comment on individual cases. He added: “As an expert witness I take my duties to the court very seriously. My role is to provide an independent medical opinion based on the information available to me at the time, and the questions put to me, to assist the court.

“Decisions in such cases are made by the judge, who considers all the evidence presented before reaching a conclusion.”

Florence also wrote to the judge overseeing her case.

A photograph of a handwritten letter on lined paper. The handwriting is in cursive and somewhat slanted. The text expresses feelings of loneliness and a desire to be with her mother, while also mentioning her father's perspective and the constraints of her living situation. There is a small blacked-out area in the middle of the text.

I am in my father's house, I feel lonely and my only consolation has been my dog. Although, even he cannot make up for the fact that I miss my mama. In addition, I do not think that it is right for [REDACTED] to be trying to fill in the gap for a mama when there is no gap, there is only something preventing me from being with her. To expand, when at my father's house, I am alone a lot of the time or I go to friends' houses for clubs, sometimes by choice but sometimes because it is convenient for my father. Despite the fact that my father says that I do not have to, he still has to work and I think that it is unreasonable to have an amazing, suitable mama who could be looking after me not being allowed to.

An extract from Florence's letter to the judge presiding over her case

As a result of the court's decision, Florence's contact with her mother had to be strictly supervised and phone calls were forbidden. For the first year they met weekly in a contact centre with a supervisor writing down everything that was said.

Then, from 2018, Florence was allowed to visit her for overnight stays on alternate weekends. Meanwhile her mother made repeated attempts to challenge the court's contact order.

Over the years Florence was shunted between social workers, police officers, expert witnesses and therapists. She was provided with a children's guardian to represent her views in court but she didn't trust them.

“I soon came to realise that while they listened to me physically, they didn't take in what I was saying and my views weren't cutting through,” she explains.

“Mum always told me if I wanted a relationship with my father she would support me, and I never doubted her. But it wasn’t what I wanted – and no one believed I’d reached that decision on my own. I felt powerless.”

It was strange time. My father joined the remote hearing on his laptop while I was upstairs having taken him to court

FLORENCE

Determined to find her own lawyer she wrote to McFarlane asking if she could appeal a court decision preventing her from having her chosen solicitor.

The lack of a reply compounded her feelings of isolation. In the new letter she writes: “[It] had a negative impact on my case because my voice continued to be silenced and professionals understood this to be a sign that even the president of the family court thought I was being manipulated by my mother.”

At first Florence spoke freely to those professionals, even telling one therapist she thought her father was “a monster”. But she soon learnt that telling the truth could harm her case.

“I started to censor myself, because the theory of parental alienation was always a threat. I couldn’t say how I really felt about my parents.”

This was most stark during court-ordered therapy sessions. Once, a therapist visited Florence at her father’s home. “He sat on a chair in my room while I sat on my bed. I was told if I didn’t get on with my dad I wouldn’t be able to see my mum,” she recalls. “Looking back I’m shocked that a grown man was given the authority to sit and threaten me in my own bedroom.”

On another occasion Florence was taken to the Anna Freud Centre, a children’s mental health charity that provides clinical services, and sat before two therapists at the other end of a long table. “It felt really intimidating. They tried to tell me there were things I didn’t know about my mum and that she was trying to sway my opinion. It was confusing sometimes but mainly it was just patronising.”

So-called “reunification” therapies for children who have rejected their parents are highly controversial, not least because parental alienation as a diagnosable syndrome has been widely discredited.

Florence wrote in her letter that the suggestion of parental alienation and subsequent therapies caused her great harm and overshadowed her childhood.

A spokesperson for the Anna Freud Centre said they could not comment on individual cases but that “hearing that someone did not feel supported by us is troubling”.

They said they continually review their practice to ensure their work remains “safe, child-centred and responsive”, adding: “We always work within the court’s remit and instructions, informed by professional assessments that take place before our involvement.”

AN EXCEPTIONAL CASE

Florence is softly spoken, unassuming and seems younger than her 20 years. But in fact, her experience has meant she had to mature much quicker than her peers.

The articulate student who describes herself as an “advocate for change”, conveys a quiet confidence and steely determination as she discusses her own case. It’s a quality which no doubt served her well in taking a legal challenge to the high court at the age of 15.

By then she’d already been seeking her own legal representation with the support of her maternal family since she was 12 – her prime objective being to return to her mother’s care.

They made repeated applications which were rejected and one judge ordered a two-year ban on making further applications.

As its expiry approached in early 2020 Florence, by then 15, started to build a case with the help of a solicitor. To keep things from her dad she would make calls or send emails in between school lessons.

Things intensified when the country went into lockdown and she found herself stuck under her dad's roof. When the ban ended she made a further application. It was rejected – but this time the high court granted her permission to appeal. “It was a strange time,” recalls Florence. “My father joined this remote hearing downstairs on his laptop while I was upstairs instructing my lawyer, having taken him to court.”

Children are usually represented in proceedings by a guardian from Children and Family Court Advisory and Support Service (Cafcass). But after Florence had read press articles about the campaigning lawyer Charlotte Proudman, she asked her solicitor to bring the barrister onto the case to represent her.

“Florence was in every sense an exceptional case,” says Proudman. “First the court told her she had no say as to which parent she lived with. Then it told her that she had no right to challenge its decision.”

But as Florence approached 16, it would become increasingly difficult for the court to justify ignoring her unwavering desire to live with her mother.

On the day of the appeal Florence was closely involved, Proudman later wrote in her book about the family courts, *He Said, She Said*.

Florence would pass her notes or ask her to mute the video feed so she could give instructions. “She was confident, clear and in command of detail – in so many ways, one of the most remarkable clients I have represented,” wrote Proudman.

Granting the appeal, the judge later explained in her published judgment that at the age of 15, Florence should be allowed “some autonomy and for her heartfelt wishes to be respected”.

While she was happy to return to her mother, she did not regard the victory as cause to celebrate. “It was mainly because of my age that they granted the appeal rather than fully understanding the complicated history and what I'd been telling them for years.”

Just before Florence turned 16 she cut off all contact with her father. “This was an incredibly difficult decision to make but it's also the most liberated I have ever felt,” she says.

She will never get back the time she lost with her mother and still suffers from the longstanding trauma of the legal process.

“It’s so important to believe young people when they say something is wrong. It can take so much to say it and losing faith in a system designed to protect you is painful,” she says.

Florence is sending a copy of her letter to McFarlane’s successor, due to be announced in the coming weeks so lessons can be learnt from her experience. “It is my hope that the next time a young person reaches out for hope in desperation it will lead to action.”

** Name has been changed*

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Hannah Summers reports on TBIJ’s Family Court Files project and has won awards for her reporting on family courts and violence against women.

ProPublica

INVESTIGATIVE JOURNALISM IN THE PUBLIC INTEREST

PARENTAL ALIENATION

Barricaded Siblings Turn to TikTok While Defying Court Order to Return to Father They Say Abused Them

A judge concluded the children were victims of parental alienation, which continues to influence family courts despite being rejected by mainstream scientific groups, and authorized police to use “reasonable force” to remove them from their mother.

by **Hannah Dreyfus**

Co-published with The Salt Lake Tribune · February 26, 2023, 5:00 a.m. EST



Ty Larson, left, livestreams on TikTok from a barricaded bedroom. Police have attempted to return him and his sister, Brynlee Larson, to the custody of their father, who they say sexually abused them. KIM RAFF FOR PROPUBLICA

ProPublica is a nonprofit newsroom that investigates abuses of power. Sign up for [Dispatches](#), a newsletter that spotlights wrongdoing around the country, to receive our stories in your inbox every week.

This story describes in detail the sexual abuse of children.

Two siblings in Utah have barricaded themselves in a bedroom at their mother’s home in defiance of a judge’s order to return to the custody of their father, despite state child welfare investigators determining that he had sexually abused the children.

The judge has authorized police to use “reasonable force” — including entry into locked rooms — against Brynlee Larson, 12, and Ty Larson, 15. Ty has spent the last month livestreaming on TikTok to call attention to their case.

The showdown is the fallout from the latest family court battle over parental alienation — a disputed psychological theory in which one parent is accused of brainwashing a child to turn them against the other parent.

“My own word does not matter, and they don’t believe my truth,” Ty said in a video posted to TikTok last month that received more than 370,000 views. “The court system isn’t trying to save us, nobody’s trying to keep us safe. I am the one that’s going to have to choose my own safety.”

Police visited the home in December and attempted to remove the siblings but decided not to break down the door despite the father’s request that they do so, according to police reports. Given the “potentially combustible situation,” officers have asked for clarification from the court before carrying out Judge Derek P. Pullan’s order, according to court records.

In 2018, Utah’s Division of Child and Family Services found that the father, Brent Joel Larson, had sexually and emotionally abused his children. Investigators categorized the abuse as “severe & chronic.” The findings led to Larson’s parenting time being restricted to a handful of supervised monthly visits, as well as a 150-day restraining order that prohibited him from having any other contact with the children.

This month, the Salt Lake County District Attorney’s office said there is an ongoing criminal investigation into Larson related to new allegations against him, according to an office spokesperson who declined to comment further. A previous criminal investigation stalled in February 2021, when prosecutors determined they did not have enough evidence to lead to a probable conviction.

Two Utah police departments, Herriman and Lone Peak, are investigating Larson for child abuse, according to spokespersons for the departments.



The view from Ty and Brynlee's Utah bedroom KIM RAFF FOR PROPUBLICA

Larson, through his attorney Ron Wilkinson, disputed the 2018 finding that he had abused the children.

In response to the new allegations, Wilkinson said in a statement: “There have been similar false claims — repeatedly, for years. The stories continue to change and expand each time — always about the same events.”

Larson has accused the children’s mother, Jessica Zahrt, of sabotaging his relationship with Ty and Brynlee through a campaign of “parental alienation.”

Mainstream scientific groups, including the American Psychiatric Association, which compiles the Diagnostic and Statistical Manual of Mental Disorders, and the World Health Organization, which publishes the International Classification of Diseases list, have rejected the theory and said it is not a legitimate diagnosis. It has also been shunned by the National Center for Juvenile Justice for failing to meet court evidentiary standards.

That has not stopped some courts across the country from recognizing parental alienation and mandating treatments to reverse it.

In a January order, Pullan found Zahrt’s “campaign” of parental alienation to be the cause of the children’s “abuse narrative” and ordered that Ty and Brynlee undergo “reunification therapy” at an out-of-state facility to address the alleged harm. Pullan also determined that switching custody to their father is the “only way to recover the children from this psychological battlefield.”



Ty and Brynlee's mother, Jessica Zahrt, in her Utah home. KIM RAFF FOR PROPUBLICA

Despite ordering the children placed back in their father’s legal custody, Pullan prohibited Larson from having unsupervised parenting time with the children or spending overnights with them, instead ordering Ty and Brynlee to be separately housed at their paternal relatives’ homes pending further court orders.

“The children are being maltreated by their mother. It is heartbreaking,” Wilkinson, Larson’s attorney, told ProPublica. “All that is hoped for is that the children can recover from the damage their mother has inflicted upon them.”

Ty said the claim that their mother is brainwashing them to disclose abuse is “100% fake — and if you don’t see that you’re as blind as a bat.”

Zahrt said since she and Larson split in 2012, she has supported her children having a healthy relationship with their father.

The Utah Attorney General’s office has received a slew of complaints about the court order and pleas for authorities to intervene, mostly from people who have learned about the case on social media, public records show. Last week, about 50 people, including advocates for family court reform, gathered at the Utah Capitol to protest the court’s handling of the case.



A small crowd, including Ty and Brynlee’s grandmother, protests the Utah family court’s handling of the children’s case. KIM RAFF FOR PROPUBLICA

A court spokesperson said Pullan is prohibited from commenting on the case. “I know Judge Pullan spent many, many hours going through evidence and testimony before he made his ruling,” the spokesperson told ProPublica in an email.

Ty spoke to ProPublica from his barricaded bedroom with his TikTok livestream on but his mic muted. Brynlee sat nearby on a futon mattress eating ramen that she prepared using hot water from a bathroom sink. To access the bathroom without entering the hallway, Ty said, he used a drill to cut a hole in the wall without telling his mother.

“I’m scared for my life,” the teen told ProPublica, who left school in December to avoid being forced into his father’s custody. Ty told child welfare investigators in 2018 that his father had threatened him by saying, if he told anyone about the abuse “he would kill his mother and sister.”

Larson, through his attorney, denied the allegation and described the claim as “inconsistent with prior claims.”

Brynlee, who has also left school to avoid returning to her father, said the court is “controlling my life.” “I could be in the middle of playing with my friends right now,” she said.



*Brynlee
makes
ramen
in
the
sink
of
the
bathroom.
Her
brother
barricaded
the
bathroom
door
and
cut
a
hole
in
the
wall
to
connect
it
to
their
bedroom.*

KIM
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PROPUBICA

In the order to remove the children from their mother's home, Pullan wrote, "The children do labor under the misperception that they are in the driver's seat and are free to determine when, where, and on what terms parent-time will occur. They are not."

The judge criticized Zahrt for continuing to "wash the children's clothes and to bring food to the barricaded room" because it enabled their continued rejection of their father.

Zahrt said the children would starve if she didn't bring them food.

Pullan, citing the opinion of a court-ordered reunification therapist, chastised Zahrt for weaponizing the children in a "social media campaign aimed at achieving her desired end" and found her in contempt of court for failing to facilitate her ex-husband's visitation on one occasion. Pullan ordered Zahrt to be jailed for five days, but will allow the contempt filing to be purged if she participates in a high-conflict parenting course.

Dr. David Corwin, a professor and director of pediatric forensic services at the University of Utah and the past president of the American Professional Society on the Abuse of Children, said parental alienation — which he described as "an ideology that is not based upon adequate research" — is too often an "easy sell" to courts seeking an alternative explanation for abuse claims.

"It really is one of the best defenses against accusations of sexual abuse," said Corwin, who co-authored a position statement for his society in January warning professionals against its use in child custody decision-making. "Claiming that a child has been programmed or coached by the other parents creates enough uncertainty for a court to believe the easier narrative: that a parent would lie, rather than that a parent would sexually abuse a child."



Jessica Zahrt talks to her children through their barricaded bedroom door. She has been criticized by the judge for enabling the children's rejection of their father by bringing them food and washing their clothes. KIM RAFF FOR PROPUBLICA

Larson first accused Zahrt of parental alienation a few months after Brynlee accused her father of sexually abusing her in May 2018. Zahrt said when she heard the phrase “parental alienation,” she had to look it up. “I literally had to wrap my brain around what I was even being accused of,” she told ProPublica. “I’ve watched them create this story about me, and it doesn’t matter what the truth really is.”

The so-called reunification camp that Ty and Brynlee have been ordered to attend with their father, Turning Points for Families, is run by Linda Gottlieb, a New York-based social worker who markets her program as a “therapeutic vacation.”

Gottlieb’s services include taking the children to an undisclosed location for a four-day “sequestration period.” During treatment, the children meet with the “unjustifiably rejected” parent. Afterward, they remain in the alienated parent’s custody for 90 days and are prohibited from having contact with the other parent or related family members.

In an interview with ProPublica, Gottlieb said she is dismayed at how social media is being used to attack her program and others like it.

“We can’t have what happened in Utah,” said Gottlieb, who said she will be requesting that courts that refer minors to her program issue orders prohibiting parents and children who resist from speaking publicly about their cases.

In his January ruling, Pullan postponed enforcing his order for the siblings to attend Turning Points and said a hearing might be necessary first.

Pullan’s rulings did not mention the 2018 DCFS findings that substantiated the children’s allegations of emotional and sexual abuse by their father.

Brynlee was 7 years old when she first began disclosing details of the abuse to her mother, according to state records. Zahrt reported her daughter’s claims to the local police department and DCSF, which opened a case. In subsequent forensic interviews, Brynlee told investigators that her father had penetrated her anus with his finger and

touched her inappropriately, resulting in significant pain, according to child welfare records. She told a police detective that her father did not take her to a doctor when she complained about the pain. According to police reports, Larson expressed “shame” for not bringing her to the doctor. On April 3, 2018, DCFS found Brynlee’s allegations of sexual abuse against Larson to be “supported.”



Brynlee, now 12, first started reporting abuse to her mother in early 2018. Shortly thereafter, DCFS found her allegations of sexual abuse against her father “supported.” KIM RAFF FOR PROPUBLICA

In November 2018, Ty, then 11, disclosed that his father was emotionally and sexually abusing him, after his mother brought him to the pediatrician for severe anxiety and panic attacks, according to child welfare reports. He disclosed that when he was about 4 years old, his father held his head under water in the bathtub while running the faucet in his anus until he couldn’t breathe. He reported that around age 7 his father put soap and a water gun in his anus while he was in the shower. Around age 8, he said, several times a month his father would come into his room and touch his penis while he was asleep. He said that when he confronted his father about it his father threatened to kill his mom and family if he told them about the abuse. On Nov. 29, 2018, DCFS found Ty’s allegations of sexual and emotional abuse against Larson to be “supported.”

Records show police corroborated DCFS' findings, but did not arrest the father. Police records do not explain why, and the department would not comment further.

According to child welfare reports, two other minors who are connected to Larson also alleged he sexually abused them. A DCFS investigation found those accusations "unsupported." In April 2018, the children's mother petitioned the court for an ex parte child protective order against Larson.

Larson, via his attorney, told ProPublica that "these years-old claims have previously been addressed."

Michelle Jones, a reunification therapist appointed by the court to work with Ty and Brynlee, told ProPublica that the children's allegations of abuse are a "false narrative." Asked about state welfare workers finding chronic and severe sexual abuse, Jones said "sometimes they accidentally make a substantiation."

She declined to detail how she reached that conclusion, citing therapist-patient confidentiality.

Jones' conclusions were contradicted by a forensic psychologist hired by both parents in 2019 to evaluate the case. Monica D. Christy, who holds a Ph.D. in development and clinical psychology, wrote in a report that "at the very least" she found Larson's behavior to be "unusual and inappropriate." "Whether or not these were sexually-motivated actions and constitute child sexual abuse is for the Court to decide," she wrote. Christy did not respond to ProPublica's request for comment.

Jones told ProPublica she is frequently appointed by the court to advise on cases involving abuse allegations. She is also a vocal defender of parental alienation and presents on the subject at national conferences. A slide from a 2013 presentation Jones gave depicts a mother speaking to a child, "Now that we falsely accused Daddy in Family Court, we can have ice cream for supper, play video games and go to the park all day, and wait for the support checks to roll in!"

Daniel Eyre, a guardian ad litem assigned by the court to represent Ty and Brynlee's interests in the case, also found parental alienation to be the cause of the children's claims of abuse and supported sending them to the reunification camp. Eyre declined to speak with ProPublica.

Some defenders of parental alienation claim an absence of abuse or neglect is necessary for the diagnosis, but others, including Gottlieb and Jones, accept cases involving allegations of abuse, including when abuse has been substantiated by authorities, like in the Larson case.

Gottlieb said determining child abuse has occurred is the responsibility of the courts.

"Turning Points only accepts cases by court order," said Gottlieb, adding that demand from courts has prompted her to scale up operations and open two new locations in Texas and California. "The court had to have already made the determination that the child is safe with the alienated parent and that abuse didn't occur — or that it was so long ago, it was remediated."

Ty partially attributes the court's decision to delay sending him and Brynlee to Turning Points to his online activism. He livestreams around the clock, including while he sleeps. He calls the followers who "stand guard" while he sleeps his "dream catchers."

"I know this is happening to so many kids," Ty said. "What separates me is that I have hundreds of people watching."



Signs in Ty and Brynlee's window calling for a stop to abuse KIM RAFF FOR PROPUBLICA

CORRECTIONS

June 8, 2023: A quotation in this story attributed to Linda Gottlieb originally included extraneous words. She said, "We can't have what happened in Utah," not "We can't have what happened in Utah happen again." (This correction originally misstated the amended quotation as "We can't have what happened in Utah happen.")

Feb. 27, 2023: This story originally misspelled the last name of the mother of the barricaded siblings. She is Jessica Zahrt, not Zhart.

Mollie Simon and Mariam Elba contributed research. Hannah Dreyfus was an Abrams Reporting Fellow at ProPublica.

Source: propublica.org/article/parental-alienation-utah-livestream-siblings

ProPublica



Vanessa Saba, special to ProPublica

PARENTAL ALIENATION

A Court Ordered Siblings to a Reunification Camp With Their Estranged Father. The Children Say It Was Abusive.

Family courts are increasingly using programs like Turning Points for Families to treat the disputed psychological theory of parental alienation. But little is publicly known about the programs' controversial methods.

by Hannah Dreyfus

May 18, 2023, 5:00 a.m.

ProPublica is a nonprofit newsroom that investigates abuses of power. Sign up for Dispatches, a newsletter that spotlights wrongdoing around the country, to receive our stories in your inbox every week.

One Thursday afternoon in December, a father and two of his estranged children boarded a flight from Salt Lake City to Texas, beginning an effort to repair their fractured relationship.

A family court official had ordered them to attend a reunification camp, Turning Points for Families Texas, to repair damage that the judge said the boys' mother had inflicted by alienating them from their father.

The following morning, at the vacation rental where their therapy sessions were to be held, the counselor made an unusual request.

Jordan, the boys' father, was asked to play a recording he'd made of a 2019 domestic dispute with his ex-wife, Hollie, that led to her arrest and their divorce. (ProPublica is using only the first names of adult family members to avoid identifying the children who are minors.) Jordan would later tell the court that he never intended for his sons to hear the sounds of their mother screaming during their fight. "I never even wanted the kids to know it existed," he said of the recording.

But the Turning Points counselor, Loretta Maase, insisted. The camp claims to remedy parental alienation, a disputed psychological theory in which one parent — in this case Hollie — is accused of brainwashing a child to turn them against the other parent. They needed to hear the truth about their mother so that "the healing can begin," Maase said of the children.

What unfolded after the recording was played caused the four-day treatment session to spiral out of control.

The younger son, then 12, covered his head with a blanket, shutting out the sounds, while his older brother became violent. When the boys refused to leave their bedroom to take part in therapy, Maase ordered the door removed. Their bedding, shower items, food and clothing were also removed, according to family members who participated in the intervention.

“They would use the blankets to hide underneath so they didn’t have to come out,” Jordan’s new wife would later testify.

The court-ordered intervention failed to reconcile the boys with their father, and beginning in January a judge convened a four-day hearing to understand why. The testimony that followed offered a rare glimpse into Turning Points’ operations and methods, as well as how family courts handle complicated family dynamics.

Custody disputes are often fraught, and courts and child welfare workers have the difficult job of sorting through allegations and counter allegations to decide what’s best for the children. Programs like Turning Points, in effect, allow overburdened family court judges to outsource some of that difficult decision-making: An order to participate effectively transfers to the person running the camp the power to decide if and when a parent can contact their child, regardless of the court’s previous custody rulings. This transfer of power generally lasts from the time the court order is issued until the camp director determines the treatment has been successful.

Despite family courts’ frequent use of Turning Points for Families, little is publicly known about the program, which was founded by New York-based social worker Linda Gottlieb, who describes the intervention as a “therapeutic vacation.”

But its treatments are controversial and frequently fall short of addressing the underlying causes of broken family relationships, experts told ProPublica.

This case is the latest example of Turning Points and programs like it triggering pushback over their methods.

ProPublica reported this year on another Utah case involving siblings who barricaded themselves in their bedroom to avoid being sent to the same Texas program. A judge subsequently backed down on an order mandating that they return to their father's custody, and the children left their room. In March, a California appellate court reversed a lower court order sending two children to a similar program, saying the judge had not adequately understood or vetted the program before ordering the children to attend.

In April, Colorado lawmakers approved a bill to prohibit state courts from using reunification programs like Turning Points; lawmakers in California and Montana are considering similar bills. And a recent United Nations Human Rights Council special report recommended that court-ordered reunification camps be prohibited.

Maase, who runs Turning Points for Families Texas, told ProPublica she was not able to comment on specific cases. Questions that ProPublica sent to her were included in a motion filed last month by Jordan, asking the judge to restrain the news organization's reporting on the case. The judge denied the request, stating the court did not have jurisdiction over ProPublica.

IN AND FOR THE SECOND JUDICIAL DISTRICT COURT, STATE OF UTAH
IN AND FOR DAVIS COUNTY, FARMINGTON DEPARTMENT

In the Matter of the Marriage of:

HOLLIE [REDACTED]

And

JORDAN [REDACTED]

**VERIFIED EX-PARTE MOTION FOR A
TEMPORARY RESTRAINING ORDER**

CIVIL NO. [REDACTED]
JUDGE RONALD RUSSELL
COMMISSIONER CHRISTINA WILSON

COMES NOW, JORDAN [REDACTED] and hereby submits this Verified Ex-Parte Motion for a Temporary Restraining Order, as follows:

CONCISE STATEMENT OF RELIEF REQUEST REQUESTED

In January of 2023 a trial was held between the parties. As a witness in this trial, Loretta Maase recommended that the minors in this case, who were suffering from severe alienation and chronic abuse (determined by DCFS investigation) by Mother, to continue reunification therapy

A reporter, Hannah Dreyfus, has now contacted several people affiliated with this case for comment about a story she's going to publish. Information has already been posted from the case on Facebook to pages that are encouraging alienation as a pseudoscience and encouraging alienated children to run away from their non-alienating parent, and personally naming key figures in the case and painting them in light of sending abused children back to their abusers through the court system. Not only are they naming witnesses, but the media is also naming doctors and judges who are supporting reunification therapy for alienated children.

Respondent requests that this Court immediately seals this case to the public. These

Jordan filed a motion against ProPublica requesting the court seal the custody case involving his boys and their mother. — Obtained by ProPublica

Jordan declined to speak with ProPublica, citing his children's need for privacy. "They've gone through a lot," he said.

In an interview, Hollie said she faces "an impossible choice: see my kids again or subject them to more of this."

Maase has blamed Hollie — "the alienating parent," Maase called her — for the treatment's failure, according to court documents. She did not comply with "Turning Points Protocols," specifically writing a letter of apology and another in support of the reunification efforts. The letters, both subject to Maase's approval, were to "explicitly and convincingly" disabuse the children of "their false beliefs about their father."

"I'm not signing anything Loretta Maase sends me," said Hollie, who despite having 50% custody before the Turning Points treatment began hasn't seen the boys since December. "I'm not putting my kids through more of her 'treatment.' I never consented to this, and I never will. How this is not a violation of my parental rights, I do not know."

"I Don't Know of Any Other Option"

Years before the children were sent to Turning Points, the court appointed reunification therapists to address their resistance and ill will toward their father.

Karly McGuire said during the year she counseled the family she came to believe that Jordan's parenting style was the cause of his sons' continued resistance to him, according to her testimony. Jordan disagreed, she said.

McGuire, who holds a Ph.D. in family therapy, told the court that Jordan constantly sent her videos about parental alienation. And he accused Hollie of spearheading a campaign of parental alienation against him and causing the rift between him and his sons.

After years of therapy, the boys continued to report they were being harmed by their father and violently resisted visitation with him. The 12-year-old posted a video on TikTok with a gun barrel in his mouth, and all three of Jordan and Hollie's sons declared

a “suicide pact” if they were forced to live with their father, according to court documents. (The oldest of the three brothers is an adult and did not participate in the reunification program.)

If you or someone you know needs help, here are a few resources:

—Call the National Suicide Prevention Lifeline: 1-800-273-8255

—Text the Crisis Text Line from anywhere in the U.S. to reach a crisis counselor: 741741

IN THE SECOND JUDICIAL DISTRICT COURT

COUNTY OF WEBER, STATE OF UTAH

HOLLIE [REDACTED] Petitioner, vs. JORDAN [REDACTED] Respondent.	EX PARTE MOTION FOR REVIEW AND CHANGE IN CUSTODY AND THE COURT'S CONSIDERATION OF PARTICIPATION IN THE TURNING POINTS PROGRAM Case No. [REDACTED] Judge Russell Commissioner Wilson
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COMES NOW **Bryce M. Froerer, as Guardian ad Litem** in the above-captioned matter, pursuant to URCP Rule 7A, and moves this Court for an immediate review of this case, a change in custody, and **consideration of participation in the Turning Points program.**

The most concerning issue is regarding [REDACTED] the 12-year-old boy. He has, in the last month, been posting very concerning messages on his TikTok site. **As recently as 24 hours prior to the preparation of this Motion, these included a photo of someone with a gun barrel in his mouth which, in my view, suggests suicide and considerable self harm.** (See Exhibit 1.)

Bryce Froerer, appointed by the court to represent the boys' interests in the custody case, cites worries of self-harm by the 12-year-old in his motion recommending treatment at Turning Points. — Obtained by ProPublica

Bryce Froerer, a guardian ad litem appointed by the court to represent the boys' interests in the custody case, told the court that their refusal to visit their father and their threats of self-harm were evidence of parental alienation. He also said a more severe intervention was needed to address it, according to court documents.

The “conservative, cautious approach” advocated by McGuire wasn't working, argued Froerer, who has no psychological training, according to his office. He recommended they instead attend Turning Points and follow its practice of prohibiting the children from seeing the “alienating parent” for at least 90 days. Froerer admitted that he had “very little experience” with Turning Points, beyond speaking with Maase and reviewing some **promotional materials**.

“I don't know of any other option at this point besides trying this program,” he told the court. “The alternative, from my perspective, Your Honor, is to linger on. And it is not my recommendation that we linger on.”

Froerer declined to speak with ProPublica. After the news organization requested an interview, he petitioned the court to seal the case.

McGuire testified that she cautioned Froerer against sending the boys to an intervention like Turning Points. She had grown concerned about their increasing despondency during her sessions, which she attributed to burnout from all of the court-ordered therapy. She believed separating them from their mother, the primary caregiver for most of their lives, would further harm their mental health.

But Froerer's argument prevailed. Christina Wilson, the judicial commissioner overseeing the case, agreed that the court was running out of options. Though she also admitted knowing little about it — asking at one point “how the program works” — she ordered the boys to participate in the intervention.

“When that's done, we can come back here and talk about what happened,” Froerer said. “And if things have improved, wonderful. And if things haven't improved,” he paused, “I don't know.”

A spokesperson for the court said Wilson was unable to comment on “any past or current cases.”

A Courtroom Affliction

The family’s trip to Texas was intended to repair a case of parental alienation. Advocates and critics debate whether it’s a real ailment, but they agree on one thing: It is only diagnosed and treated in the family courtroom.

“Other kinds of psychological dysfunctions that show up in court tend to show up elsewhere as well, whereas parental alienation is a process that is specifically brought to court to remedy,” said Demosthenes Lorandos, an attorney and parental alienation scholar who has written about a reunification program that uses methods similar to Turning Points. Lorandos defends parental alienation as a legitimate diagnosis and believes reunification camps are a safe and effective way to treat the condition. Lorandos, who also holds a doctorate in clinical psychology, said he does not know of another psychological dysfunction that only shows up in court.

Dr. David Corwin, a professor and director of pediatric forensic services at the University of Utah and a past president of the American Professional Society on the Abuse of Children, disputes that parental alienation is a legitimate disorder. It almost exclusively affects children of parents with higher socioeconomic status, he said. “True mental health disorders are more equally distributed throughout the population, regardless of socioeconomic status, class or social context.”

Gottlieb told ProPublica that she created Turning Points at the request of lawyers whose clients were seeking intensive treatment for alienation. Gottlieb, who trained Maase, has expanded to meet the demand, including the Texas location and a program in California.

Maase said Jordan paid her company \$12,000 for the Texas sessions. Today, the price for the four-day treatment is \$15,000.

Lorandos said he charges \$5,000 a day for expert testimony in parental alienation cases, and the bill for his services on a single case has reached \$50,000.

“Business is booming,” said Robin Deutsch, chair of the American Psychological Association’s working group on high conflict family relationships involving children.

She is a critic of Turning Points and programs like it, saying their treatments don’t address the complex dynamics that cause fractures within families. “The court has to put all their eggs in the parental alienation basket. And the kids will suffer because of it,” Deutsch said. (Previously, Deutsch ran a reunification camp that she says differed in its approach to family fractures; she said the camp is no longer in operation.)

Outside the courtroom, the ailment that the programs claim to heal — parental alienation — has struggled to gain legitimacy. Medical and psychological professionals, including the American Psychiatric Association, have rejected it as a mental disorder. And the special report released by the United Nations Human Rights Council blasted parental alienation as a “pseudo-concept” and recommended member states prohibit its use in family courts.

The theory has also been shunned by the National Council of Juvenile and Family Court Judges for failing to meet court evidentiary standards.

Jennifer Hoult, an attorney and legal scholar, has written about why parental alienation fails to meet national standards for court admissibility. She said the theory is based on a fallacy that parents have a right to be loved. “There is no legal right to force your children to love you, respect you or even like you,” she said.

Gottlieb, who spoke to ProPublica in February for another story, argues alienation typically begins when people believe children’s claims of abuse. “Everyone knows children lie,” Gottlieb told ProPublica. “Lying is so instinctual — children love to make up stories. Why on earth do we believe that children are reporting accurately?”

Little independent research has examined the long-term effects of reunification camps on children.

A 2021 evaluation led by Jennifer Jill Harman, an associate professor of psychology at Colorado State University who believes parental alienation is a genuine diagnosis, analyzed video recordings of Gottlieb's intervention with 15 families. Based on Gottlieb's "self-reported" success during the intervention itself, the evaluation found the program was safe and had a 96% rate of effectiveness.

According to Harman, the analysis didn't look at the treatment's long-term effectiveness. And the study was intended to "promote" the program and refute claims that its interventions "are traumatic for children and cause long-term harm," according to Harman's application to the Colorado State University Institutional Review Board for the project. Gottlieb was involved in designing and executing the evaluation of her program, records show.

Harman declined to comment. Gottlieb didn't respond to requests to comment for this story.

Jennifer Bard, an expert in human-subjects research law and a professor at the University of Cincinnati, questioned the value of this evaluation of Turning Points.

"The fact that the person who stands to profit by the findings of this study designed it should cause considerable concern," Bard said. "It's almost as if this study was put together to support a predetermined conclusion, which is not what studies are supposed to do."

Sessions Spiral Out of Control

On Dec. 1, police officers arrived at Jordan's brick-front home in Syracuse, Utah. He had called for help with a "juvenile problem." His two sons were refusing to be taken to Turning Points as the court had ordered, according to police records.

Eventually, the boys agreed to go, and the group that traveled to Texas included Jordan's new wife (the boys had not previously met her) and stepchildren, and the boys' paternal uncle and cousins, according to testimony. The boys' older brother, Xander, who is 19, opted out of the program.

Maase held full-day sessions at the family's vacation rental. (The address on the Turning Points for Families Texas website is a post office box at a strip mall in Austin.)

In discussing the program, the judge and commissioner overseeing the case referred to Maase repeatedly as a "doctor," though Maase is not a doctor and does not refer to herself as such. She is a licensed professional counselor with a master's degree in counseling and family therapy. She is not permitted to provide or advertise herself as providing psychological or medical services, according to the executive director of the Texas Behavioral Health Executive Council. Maase also operates a counseling company called ParentRise, which provides therapy to families.

Jordan testified that after the sessions began, Maase instructed him to play for the boys the recording of the July 1, 2019, domestic dispute between him and his ex-wife.

Hollie said during the dispute she lunged to grab a phone when she realized her then-husband was using it to record them. She denies being physically violent with Jordan.

The incident led to Hollie's arrest. She was charged with domestic violence in the presence of a child and disorderly conduct. She pleaded not guilty to the charges, which were later dismissed.

Maase told the court that introducing children to recordings and documents of their parents' domestic disputes is "standard procedure" at her camp in order to correct children's "false narrative" about the alienated parent — in this case Jordan.

In her report to the court, Maase wrote that throughout their time in Texas the boys showed "inadequate compliance, aggressive and violent behaviors, and overall lack of progress."

Texas police officers were called several times to respond to the 16-year-old's threats of violence toward himself and others. Though he weighed only 111 pounds, the teenager had to be physically restrained several times by family members before police arrived.

According to accounts from those who participated in the intervention, Maase instructed adult family members to physically coerce the boys to cooperate with the treatment. According to one account, Maase recorded the therapy sessions over the boys' objections and repeatedly threatened them, including telling the older boy that he would go to jail if he didn't cooperate and might never see his mother again. According to more than one account, Maase took away the boys' food during the intervention in order to compel participation.

Maase told ProPublica that these claims are "preposterous." "I advise that you turn your attention to the motives of those who would make such assertions in the first place," she wrote in an email.

Since the intervention, the children have been barred from participating in individual therapy.



Turning Points for Families – Texas

Loretta Maase, MA, LPC-S
Texas State Practitioner

Telephone [REDACTED]

www.turningpointsforfamilies-texas.com

12/8/2022

Re: CIVIL NO. [REDACTED]

Dear Mr. Froerer,

I am writing to you in your capacity as the Guardian ad Litem for the two minor children referenced in this case.

6. Regarding after-care therapy, *individual therapy is contraindicated (considered dangerous)*. Research is clear (as well as validated in our work with hundreds of families), that individual therapy is harmful post-treatment because of the probability that the child(ren)'s false narratives will be allowed to stand and will once again be supported/validated as being accurate. *It is critically important for the children's mental and emotional wellbeing that the legal and clinical teams understand the assault on children's cognitive development when they are encouraged and/or allowed to believe they had abusive past experiences when, in fact, they did not.*

When and if Ms. [REDACTED] complies with the TPF-T treatment protocols to takes responsibility for her abusive behaviors, contact should be restored gradually beginning with supervised visits. There is too much risk for the children's psychological and emotional wellbeing to go back to unsupervised contact with mother. Again, these recommendations are for protective reasons and are not meant to advise regarding custody.

Respectfully submitted,

Loretta Maase, LPC-S

Loretta Maase, MA, LPC-S

In her report to the court, Turning Points counselor Loretta Maase states that individual therapy would be considered dangerous to the children. — Obtained by ProPublica

Such prohibitions are standard Turning Points protocol. Maase explained to the court that interacting with therapists who aren't part of Turning Points could be "dangerous" because they might encourage the children to believe "they had abusive past experiences when, in fact, they did not."

Separated From Their Mother

After returning from Texas, the boys remained with their father, beginning the 90-day separation from their mother and any relatives who had defended her in the dispute.

In such programs the separation can be extended by the facilitator if the children or the accused parent fail to comply with the treatment.

"Sometimes the 90-day order can turn into a forever order," Deutsch said.

On Dec. 6, the day after their return from Texas, Jordan brought the 16-year-old to a Salt Lake City emergency room out of fear he would hurt himself or others, according to court documents.

The teenager told the doctor that he had attended a "brainwashing camp" and felt "unsafe" with his father. He said that he had been physically assaulted while at the Turning Points program, according to medical records. The medical report described "faint linear marks" on his upper arms, where the patient said his father had grabbed him.

Another teenager treated years ago by Turning Points in upstate New York also alleged he was abused during his therapy sessions. According to a July 2016 police report, an officer was dispatched to the home of Gottlieb, the Turning Points founder, to investigate claims that a 16-year-old, Caleb Thomas, had been "dropped off at the therapist's residence" and "assaulted and thrown in a closet." No charges were filed.

Thomas told ProPublica that when he protested Gottlieb's attempts to record his therapy sessions, he was pinned to the floor by his father and another man. Thomas said he escaped through a window, intending to return to his mother, but was caught by police.

Lt. Craig Wood, the police officer who responded to the report, said he recalled Gottlieb showing him an order from a Delaware family court judge, placing the teen in her care. "I found it unusual that they couldn't find a doctor closer to where they lived, but she's a specialist, I guess," he said.

Gottlieb did not respond to a request for comment.

The week after Jordan took his 16-year-old son to the emergency room, he brought his 12-year-old son to the ER for "suicidal ideation with intent."

The boy also told medical staff about the "alienation camp," where he was "threatened that he would be arrested if he didn't cooperate," according to medical records. He told hospital staff that while there he had been forced to look at documents and watch video showing that "his mom was a 'bad person.'"

The 12-year-old said that at his father's house he was being "restrained daily" if he didn't do what his dad wanted, and he said he felt "mentally broken down" because of his father's threats that he would never again see his mother. The boy disclosed to medical staff that his father had sexually abused him at age 11. According to the medical report, Utah's Department of Children and Family Services is investigating the boy's claims. DCFS declined to comment.

Jordan did not respond to requests for comment about the allegation. He told hospital staff that multiple DCFS cases had been opened against him and closed because of a lack of evidence. He said he believed his ex-wife had made false claims about him to the children to further alienate them from him, according to court documents.

The child told medical staff that if he was forced to return to his father's house, he would "find a way to kill himself." He was admitted for inpatient psychiatric care.

Jordan's father, Brent, testified in the hearing earlier this year that he has long-standing concerns about his son's parenting and the effect the reunification camp has had on his grandsons.

"They don't feel safe with police officers, they don't trust you, they don't trust their father. And the reason is because they told their story of abuse and what happens is they get shoved back into the hands of their abuser every time," Brent testified. "How can you ask a child to rationalize that?"

Police have been called to Jordan's home multiple times since the family's return from Texas, according to 911 records. On Dec. 15, a juvenile court judge ordered the children to be removed from the home and placed with their mom. Police brought the 12-year-old to Hollie (the 16-year-old had already run away to his mother's home). The next day, Jordan secured an order returning the boys to his house. Police assisted with the transfer.

In February, Maase advised the court to continue prohibiting the boys from seeing their mother until Hollie "fully acknowledges the alienation and discontinues her negative behaviors." The children must first "relinquish their alienating thoughts, beliefs, attitudes, feelings and behavior" before they are allowed to see her, Maase wrote in a report to the court.

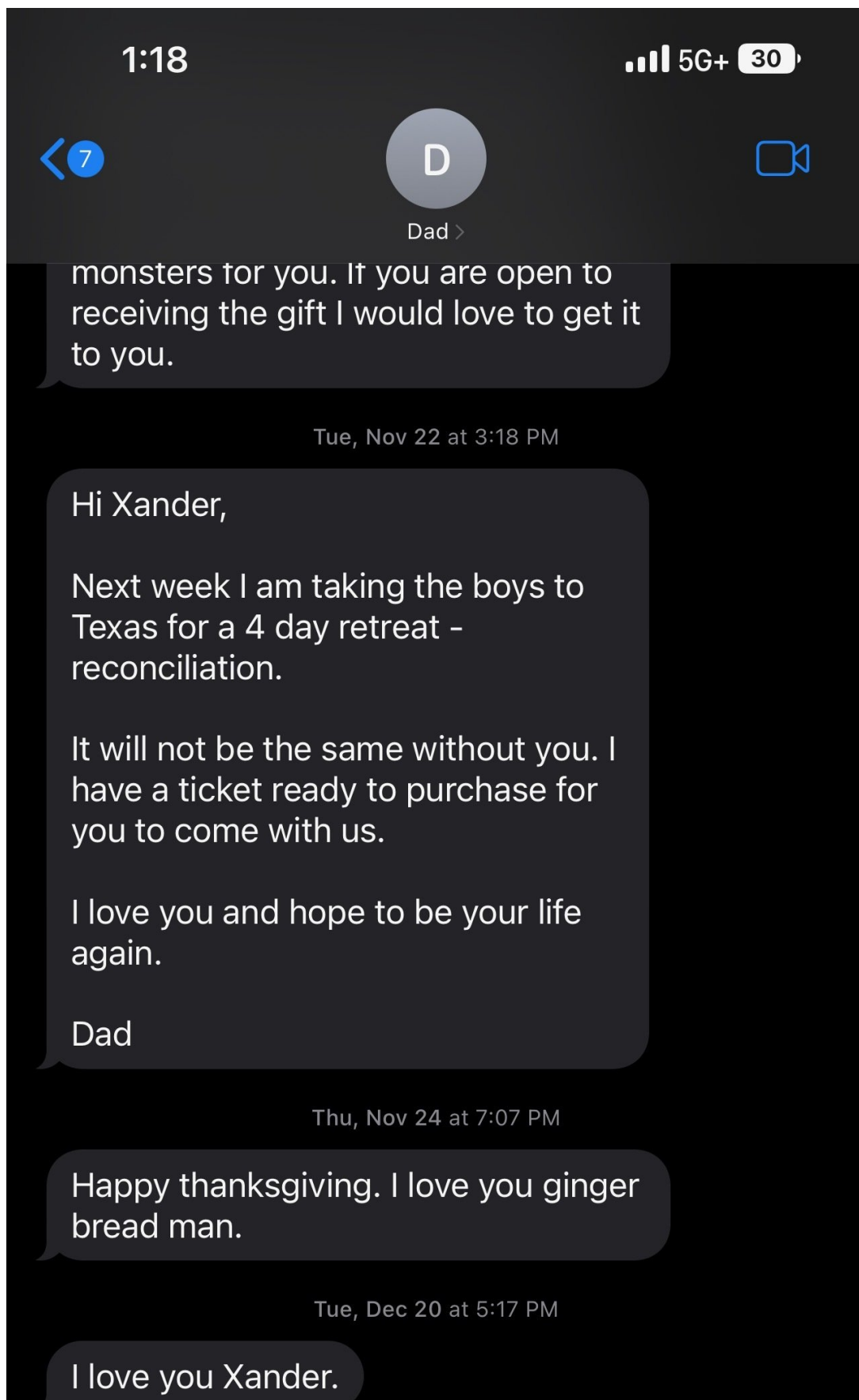
Judge Ronald G. Russell ordered the children to continue Maase's treatment.

Hollie has not been permitted to communicate with her children who are minors since December. In February, she moved from her home in Utah to dissuade the boys from running away from their father's house to see her, as they had done multiple times. If they do it again, the no-contact order will be extended, Hollie said.

The Oldest Brother

As a legal adult, the court couldn't force Xander, the oldest of the three brothers, to participate in the reunification program.

Jordan invited him to join them in Texas, texting at the end of November, “It will not be the same without you. I have a ticket ready to purchase for you to come with us. I love you and hope to be your life again.”



Jordan invited his son Xander via text message at the end of November to participate in the reunification program in Texas. — Provided by Xander

Xander never responded.

He told ProPublica that he had been through years of failed court-mandated reunification therapy and had no intention of participating in more.

Still, he has struggled with feelings of guilt for not being with his brothers as they suffered through the reunification camp.

“Maybe if I had gone, I could have protected them,” he said. “I’m having trouble forgiving myself for that.”

Clarification, May 18, 2023: This article was updated to clarify that the National Council of Juvenile and Family Court Judges has shunned the theory of parental alienation.

Mariam Elba and Mollie Simon contributed research. Michael Squires contributed reporting.

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